

Court No. - 29

Case :- WRIT - C No. - 3620 of 2024

Petitioner :- Pawan Kumar Sharma

Respondent :- Paschimanchal Vidhut Vitran Nigam Ltd And 3 Others

Counsel for Petitioner :- Syed Ahmed Faizan, Fatma Anjum

Counsel for Respondent :- Abhishek Srivastava

Hon'ble Vivek Kumar Birla, J.

Hon'ble Donadi Ramesh, J.

1. Put up this case as fresh on 16th February, 2024 before appropriate Bench, so as to enable learned Standing Counsel to seek instructions in the matter whether the petitioner has applied for One Time Settlement or not.

Order Date :- 8.2.2024

Noman

Court No. - 21

Case :- WRIT - C No. - 3620 of 2024

Petitioner :- Pawan Kumar Sharma

Respondent :- Paschimanchal Vidhut Vitran Nigam Ltd And 3 Others

Counsel for Petitioner :- Fatma Anjum, Syed Ahmed Faizan

Counsel for Respondent :- Abhishek Srivastava

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Kshitij Shailendra, J.

1. From the instructions furnished by the Electricity Department to its counsel, it is clear that the impugned recovery notice has been issued without there being any final assessment order in existence.
2. We require affidavit of the Managing Director, Paschimanchal Vidyut Vitran Nigam Limited to apprise the Court how the impugned recovery could have been issued without following the procedure for assessment provided under the Act as well as under the U.P. Electricity Supply Code, 2005.
3. Put up as fresh on 06.03.2024 along with record of Writ-C No.3458 of 2024 (Devpati Devi Vs. State of U.P. and 2 others) which relates to similar issue involving Purvanchal Vidyut Vitran Nigam Limited.
4. In the meantime, impugned recovery shall remain in abeyance.
5. Shri Abhishek Srivastava, learned counsel for respondent-Electricity Department, will communicate the instant order to the concerned officer for ensuring compliance.

Order Date :- 1.3.2024

AKShukla/-

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

Court No. - 21

Case :- WRIT - C No. - 3620 of 2024

Petitioner :- Pawan Kumar Sharma

Respondent :- Paschimanchal Vidhut Vitran Nigam Ltd And 3 Others

Counsel for Petitioner :- Fatma Anjum, Syed Ahmed Faizan

Counsel for Respondent :- Abhishek Srivastava

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Kshitij Shailendra, J.

1. Supplementary affidavit filed today, is taken on record. In compliance of our previous order, an affidavit of compliance on behalf of Managing Director, Paschimanchal Vidhyut Vitran Nigam Ltd. filed today, is also taken on record.
2. Perused the affidavit filed by the Managing Director, Paschimanchal Vidhyut Vitran Nigam Ltd. Meerut. After going through the said affidavit, we are not at all satisfied that any proper monitoring is being done to ensure compliance of Clause 6.8 of the Electricity Supply Code, 2005 and other statutory provisions. Almost on daily basis, a number of cases are coming up before this Court alleging violation of the procedure and on account of which this Court has to interfere. This also results in loss of revenue to the public exchequer.
3. Shri Abhishek Srivastava, learned counsel appearing for the respondent, Electricity Department, seeks two weeks' time to file better affidavit of the Managing Director, Paschimanchal Vidhyut Vitran Nigam Ltd. disclosing the mode of monitoring the cases of assessments and the details of the action taken in such cases qua the consumer as well as against erring officers.
4. Accordingly, adjourned to 1 April 2024, as a fresh case along with all connected cases.
5. In all connected cases where interim order is in operation, it will remain in force till the next date.

Order Date :- 6.3.2024

Mukesh Kr.

(Kshitij Shailendra, J.)

(Manoj Kumar Gupta, J.)

Court No. - 21

Case :- WRIT - C No. - 3620 of 2024

Petitioner :- Pawan Kumar Sharma

Respondent :- Paschimanchal Vidhut Vitran Nigam Ltd And 3 Others

Counsel for Petitioner :- Fatma Anjum, Syed Ahmed Faizan

Counsel for Respondent :- Abhishek Srivastava

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Kshitij Shailendra, J.

1. In compliance of our previous order, an affidavit has been filed by the Managing Director, Pashchimanchal Vidyut Vitran Nigam Limited stating that on 26.03.2024, an office memorandum has been issued requiring the assessing officers to recall all recoveries where prescribed procedure has not been followed.
2. A training session through video conferencing was held on 26.03.2024. The Chief Engineers of all zones have been directed to furnish details of remedial measures taken by the competent authorities in respect of assessments wrongly made.
3. We are informed that the petitioner has been issued a notice fixing 10.04.2024 for personal hearing.
4. We expect the petitioner to appear on the said date before the concerned official.
5. List on **18.04.2024** alongwith Writ-C No.3458 of 2024.
6. In the meantime, interim order shall remain in operation.

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

Order Date :- 1.4.2024

Ankit.

Court No. - 21

Case :- WRIT - C No. - 3620 of 2024

Petitioner :- Pawan Kumar Sharma

Respondent :- Paschimanchal Vidhut Vitran Nigam Ltd And 3 Others

Counsel for Petitioner :- Fatma Anjum, Syed Ahmed Faizan

Counsel for Respondent :- Abhishek Srivastava

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Kshitij Shailendra, J.

1. Supplementary affidavit filed today, is taken on record.
2. The instant petition has been filed challenging the notice dated 28.11.2023 by which the petitioner was informed about OTS scheme and the amount which he is liable to pay thereunder.
3. The aforesaid notice was issued to the petitioner on basis of the allegation that he had committed theft of electricity. This Court having found that proper procedure was not followed and without there being any order of final assessment, the impugned notice was issued, required the Managing Director of the concerned DISCOM to file affidavit disclosing how the monitoring of assessment cases is being done to ensure that the proper procedure is followed.
4. In compliance of the said direction, the Managing Director had filed his affidavit disclosing various measures taken by him and had assured the Court that in future also, proper monitoring would be done and in case it is found that the procedure is not being followed, action in accordance with law would be taken against the erring officer. In the said context, the order passed on 01.04.2024 is extracted below:

"1. In compliance of our previous order, an affidavit has been filed by the Managing Director, Pashchimanchal Vidyut Vitran Nigam Limited stating that on 26.03.2024, an office memorandum has been issued requiring the assessing officers to recall all recoveries where prescribed procedure has not been followed.

2. A training session through video conferencing was held on 26.03.2024. The Chief Engineers of all zones have been directed to furnish details of remedial measures taken by the competent authorities in respect of assessments wrongly made.

3. We are informed that the petitioner has been issued a notice fixing 10.04.2024 for personal hearing.

4. We expect the petitioner to appear on the said date before the concerned official.

5. List on 18.04.2024 alongwith Writ-C No.3458 of 2024.

6. In the meantime, interim order shall remain in operation."

5. On matter being taken up today, we are informed that the hearing in the matter took place on 10.04.2024 and thereafter an order of final assessment has been passed on 16.04.2024. A copy of the said order has been supplied to the counsel for the petitioner. The petitioner had appeared on 10 April 2024 and had also filed his objections.

6. Having regard to the aforesaid development, we are of the opinion that no further direction is required to be issued in relation to the impugned recovery notice which is being treated by the department to have been withdrawn in view of fresh assessment order having been passed against the petitioner.

7. The petition is, accordingly, disposed of with liberty to the petitioner to challenge fresh assessment order in an independent proceedings as may be advised.

Order Date :- 18.4.2024

Mukesh Kr.

(Kshitij Shailendra,J.)

(Manoj Kumar Gupta,J.)